

Sequel Alloys And Wires Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 December 2025 · Writ-C No. 44490 of 2025 · **Writ disposed; Para 6.1 representation directed.**

HEADNOTE

A challenge to billed 'energy arrears', alleged to recast electricity duty already restrained by an earlier interim order, was not decided on merits. The Division Bench held that chargeability can be considered by the competent authority under Para 6.1 of the U.P. Electricity Supply Code, 2005, and disposed of the writ permitting a representation to be decided in accordance with law after hearing.

FACTUAL SUMMARY

Sequel Alloys And Wires Pvt. Ltd., an SEZ unit, challenged billed energy arrears. It claimed exemption from electricity duty under a Government Order dated 31 March 2008. In Writ-C No. 52391 of 2016 this Court had restrained realisation of that duty. The petitioner alleged that the distribution licensee was now imposing the same liability under the heading energy arrears to circumvent the interim order, and that as an SEZ it could not be so charged.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.1

para-6.1-representation-energy-arrears

HOLDING

Whether the licensee may impose billed energy arrears is for the competent authority on a representation under Para 6.1 of the U.P. Electricity Supply Code, 2005. The writ court will not decide chargeability; if a representation is filed within one month, the authority shall decide it strictly in accordance with law after notice and hearing within one month thereafter. ¶ 6-7

FLAG Cited as Para 6.1 without a sub-clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MAY CHARGE ENERGY ARREARS FROM THE SEZ PETITIONER, INCLUDING AS A RECASTING OF ELECTRICITY DUTY RESTRAINED IN WRIT-C NO. 52391 OF 2016

Left to the competent authority under Para 6.1. ¶ 6-7